

Justification & Approval For Other than Full and Open Competition

As a legislative branch agency, the Library is subject to the competition and advertising requirements of 41 U.S.C. § 6101. Like the Competition in Contracting Act and the FAR, 41 U.S.C. § 6101 does not require competition when a contracting officer certifies that only one source or brand-name item is available, when dictated by public exigency, or when otherwise authorized by law.

This document sets forth the justification and approval for award of a contract or order by means providing for other than full and open competition per 41 U.S.C. § 6101, LCR 7-210, and, as applicable, FAR 6.302, FAR 13.106-1, FAR 8.405, and FAR 16.505. Contracting without competition shall not be justified on the basis of a lack of advance planning or concerns related to availability of funds.

This form shall be used to support instances where competition will be limited to a single source, a limited number of sources, including where a brand name product is required.

Part 1 – Identification

1. Contracting Agency and Activity:

Library of Congress
National Audiovisual Conservation Center
Film Preservation Laboratory

2. Nature of Action Being Approved

- ☒ Contract (or modification)
- ☐ LoC or Leg Branch Order (or modification)
- ☐ GSA Schedule or GWAC:
- ☐ Other:

Plan ID Number: 2025-LGR-0089
Contractor: Lasergraphics, Inc
Estimated Value: [REDACTED]
Period of Performance: 05/15/2025 – 05/14/2026
05/15/2026 – 05/14/2027
05/15/2027 – 05/14/2027
05/15/2028 – 05/14/2027
05/15/2029 – 05/14/2027

3. Description of Supplies or Services Required to Meet Library Needs

Describe the supplies or services that are required to meet the Library's minimum needs and the delivery schedule required to meet those needs. Do not focus on a description of the program.

The Library requires the following supplies or services: The Library of Congress requires contract support to service its Lasergraphics 5k+ Scan Station scanning system. This scanning system was originally installed in the National Audiovisual Conservation Center (NAVCC) Film Preservation Laboratory in Fiscal Year 14. The scanning system is a vital component of the Library's digitization efforts as it converts motion picture film into digital files. The maintenance and support of this system is necessary for the Film Preservation Lab to continue fulfilling it and the Library's mission to digitize its collections for both preservation and public access purposes.

Part 2 – Program Office Justification & Approval

4. Authority for Contracting Without Competition

Over \$250,000

For this requirement over \$250,000, under FAR part 6, the basis for contracting without providing for full and open competition is:

- ☐ There is only one responsible source and no other supplies or services will satisfy Library requirements. 41 U.S.C. § 6101(b)(2)(C); FAR 6.302-1.
 - ☐ Library's minimum needs can only be satisfied by contractor's unique capabilities or products. FAR 6.302-1(b)(1).
 - ☐ Source controls copyrights, patents, raw materials, or secret processes cannot be acquired otherwise, or similar circumstances. FAR 6.302-1(b)(2).
 - ☐ Other exception identified in FAR 6.302-1:
- ☐ There is such unusual & compelling urgency that the Government would be seriously injured if competition is not limited. 41 U.S.C. § 6101(b)(2)(B); FAR 6.302-2. Option years are not permitted.
- ☐ Source is expressly authorized or required by statute (e.g., AbilityOne, UNICOR, GPO, GSA Public Buildings Service, Appropriations Act, etc.) per 41 U.S.C. § 6101(b)(1) and FAR 6.302-5:
- ☐ Other basis authorized in 41 U.S.C. § 6101(b) or FAR part 6.302:
- ☐ Library's needs can only be satisfied by a brand-name product or item which is essential to the Government's requirement. FAR 6.302-1(c).
- ☐ The Product is listed on the Library of Congress Enterprise Architecture Repository (LCEAR) database (Attach applicable IT Standard Data Sheet)

Up to and including \$250,000

For this requirement up to \$250,000, using simplified acquisition procedures under FAR part 13, the basis for contracting without providing for full and open competition is:

- ☒ Only one responsible source is reasonably available to meet Library requirements. 41 U.S.C. § 6101(b); FAR 13.106-1.
 - ☐ Product or service is reasonably available from only one source.
 - ☒ Source controls copyrights, patents or other exclusive licensing arrangements.
 - ☐ Urgent circumstances; only one source can reasonably deliver by required date. Option years are not permitted.
 - ☐ Source is expressly authorized or required by statute:
- ☐ Library's needs can only be satisfied by a brand-name product
- ☐ The Product is listed the Library of Congress Enterprise Architecture Repository (LCEAR) database (Attach applicable IT Standard Data Sheet)

GSA Schedule Order

For this GSA schedule order under FAR part 8, the basis for not competing among GSA schedule-holders and/or specifying a brand name product or item is:

- ☐ An urgent and compelling need exists, and following GSA procedures would result in unacceptable delays. FAR 8.405-6(a)(1)(i)(A).
- ☐ Only one GSA source is capable of fulfilling the requirement at the level of quality required because the supplies or services are unique or highly specialized. FAR 8.405-6(a)(1)(i)(B).
- ☐ In the interest of economy and efficiency, the new work is a logical follow-on to an original order that was placed competitively among GSA schedule-holders (i.e., the original order was not sole-source or limited-source.) FAR 8.405-6(a)(1)(i)(C).
- ☐ Library's needs can only be satisfied by a brand-name product
- ☐ The Product is listed on the Library of Congress Enterprise Architecture Repository (LCEAR) database (Attach applicable IT Standard Data Sheet)

Order Under Multiple Award Indefinite-Delivery Contract or GWAC

For this order under FAR subpart 16.5, the basis for contracting without providing for full and open competition is:

- ☐ The need is so urgent fair opportunity would result in unacceptable delays. 41 U.S.C. § 6101(b)(2)(C) and FAR 16.505(b)(2)(i)(A).
- ☐ The Library's minimum needs can only be satisfied by contractor's unique capabilities or products. 41 U.S.C. § 6101(b)(1) and FAR 16.505(b)(2)(i)(B).
- ☐ A logical follow-on order in the interest of economy and efficiency. 41 U.S.C. § 6101(b)(1) and FAR 16.505(b)(i)(2)(C).
- ☐ To satisfy a minimum guarantee. 41 U.S.C. § 6101(b)(1) and FAR 16.505(b)(2)(D).
- ☐ Authorized or required by statute. 41 U.S.C. § 6101(b)(1) and FAR 16.505(b)(2)(E).
- ☐ The Library's minimum needs can only be satisfied by a brand-name product or item which is essential to the Government's requirement. 41 U.S.C. § 6101(b)(2)(B) and FAR 16.505(a)(4)(i).
- ☐ The Product is listed on the Library of Congress Enterprise Architecture Repository (LCEAR) database (Attach applicable IT Standard Data Sheet)

5. Rationale for Contracting Without Competition

In supporting an action not providing for full and open competition, it is not sufficient to demonstrate that the contractor is exceptionally well qualified or even the best qualified, or that the required brand name product is well suited to the Library's needs. The rationale must demonstrate that no one else, or no other competing product, can satisfactorily fulfill the Library's requirement. Do not focus on the importance of the requirement; the issue is the rationale for not competing.

In supporting urgency, address the following: What are the unexpected facts or the unpredictable events that led to this situation? When is the required delivery or performance start date? Why this date? What specific harm to the Government will occur if the delivery is not made or performance not begun as scheduled? (Note that expiration of funds is not sufficient harm to justify not competing.) Demonstrate that the contract is only for items and quantities urgently needed until a competitive procurement action can be developed, or that a separate competitive follow-on is not practical.

In supporting a brand name justification, the brand name or feature must be essential to the Library's requirements, and market research indicates that other company's similar products or products with similar features cannot meet or be modified to meet the Library's needs.

We are authorized to limit competition on the basis of the citation in section 4 because: The Lasergraphics scanning system was acquired through a full and open FY2014 competition for consolidated systems integration of film digitization methods. The scanning system continues to meet the Library's requirements for successfully digitizing motion picture films at up to a 4k resolution. Thus, the Library seeks to continue supporting this existing fully functional Lasergraphics system, rather than pursue a costly and unnecessary replacement.

Given the specialized nature of much hardware and software in the audiovisual industry, services and parts for this and similar systems are often proprietary to the manufacturer. At this time, service and support contracts for the Lasergraphics 5K+ system are available exclusively through the manufacturer, Lasergraphics, and no third-party parts or unauthorized services can be permitted without risking the function and integrity of the system. Although market research shows that some third-party vendors might be able to perform some repairs, they are not able to provide all of the services, required in the Statement of Work, that must be performed by Lasergraphics technicians, who have received special training to work on the system. In addition, because only Lasergraphics replacement parts may be used to service the system, it would not make sense for a third-party vendor to separately source any replacement parts from Lasergraphics.

Due to the proprietary nature of many of the services of the requirement and the lack of a third-party vendor that can fully perform the contract requirements, the Library will award a sole-source contract to the original equipment manufacturer, Lasergraphics, Inc.

6. Actions to Overcome Barriers to Competition Before Subsequent Contract Is Required

State what actions, if any, the program office can take to overcome barriers to competition before a contracting for this requirement again, such as: using action to provide time to develop specifications for a competitive procurement by a certain date; licensing copyrights or patents so other contractors may use the works; or breaking the requirement into parts that may be purchased competitively. If this is a one-time requirement, explain that action to increase future competition is not needed. If the source is expressly required by statute, state "Source is statutory."

To increase competition, we will: The Library's NAVCC personnel perform ongoing research and regularly engage with companies and individuals that provide unique services in narrow, often aging, fields related to audiovisual services and preservation. The Library will continue surveying the field should a new vendor exist that can perform these services as well as Lasergraphics trained staff. The Library will continue to seek creative acquisition solutions in the event this scanning system needs to be replaced in the future.

7. Program Office Certification

I certify that the description of the Government's minimum needs, schedule requirements, and technical information that provide the basis for this justification are accurate and complete.

[Redacted]

[Redacted]

[Redacted]

[Redacted]

Name

Title

Signature

Date

PART 3 – CONTRACTING OFFICER DETERMINATIONS & CERTIFICATION

8. Efforts to Solicit from As Many Potential Sources As Practicable

Unless a justification is based on FAR 6.302-2, Unusual and compelling urgency, contracting officers shall post justifications for other than full and open competition, including brand name justifications, to the Contract Opportunities website on sam.gov (or eBuy for Brand Name Justifications under FAR Part 8) prior to requesting a proposal or otherwise entering into negotiations.

- ☒ Advance notice will be published in sam.gov for 15 days before a contract is awarded. FAR 5.203(a).
- ☐ Advance or concurrent notice will be published in sam.gov for a reasonable time for commercial items FAR 5.203(a) and 12.204(b).
- ☐ Advance notice will not be published because the action meets the following FAR exception:
- ☐ Notice would compromise national security. FAR 5.202(a)(1).
 - ☐ Unusual and compelling urgency; notice period would seriously injure Government. FAR 5.202(a)(2).
 - ☐ Expressly authorized or required to be made through another Government agency. FAR 5.202(a)(4).
 - ☐ Order will be placed against an IDIQ contract awarded under FAR 16.5. FAR 5.202(a)(6).
 - ☐ Order will be placed against GSA schedule or other competitively-awarded contract. FAR 5.202(a)(11).
 - ☐ Other:
- ☐ Advance notice will not be published per 41 U.S.C. § 6101; see attached deviation from the FAR per LCR 7-210 § 3.A.

We made the following efforts to interest potential sources in this award: Not applicable.

9. Listing of Sources That Expressed Interest in Writing

The following sources expressed interest in this award: Not applicable.

10. Additional Information

The following additional information is relevant to this justification and approval: Not applicable.

11. Contracting Officer Determination that Price Is Fair and Reasonable

As explained in detail below, I have determined that the prices for this contracting action are fair and reasonable based on comparison of the prices to the following (see FAR 15.404-1(b)(2)):

- | | |
|---|---|
| ☒ Historical prices paid by the Government | ☐ Published competitive price lists |
| ☒ Library's Independent Government Estimate | ☒ Prices obtained through market research |
| ☐ Other: | ☐ Prices obtained through competitive proposals |

The following analysis (based on attached pricing information) supports my determination: Prices will be evaluated for fairness and reasonableness in accordance with the FAR before any award is made.

12. Contracting Officer Determination of Responsibility

- ☒ Checked System for Award Management (or will check in the case of competitive proposals for a brand name product)

13. Contracting Officer Determination of Best Value

I have determined that this action represents the best value to the Government because: the Library requires the services of a Lasergraphics trained technician and authorized parts. Based on historical pricing data, the Library's IGCE, and prices obtained through market research, the CO has determined that an award to Lasergraphics represents the best value to the Library.

14. Contracting Officer Certification

I certify that, to the best of my knowledge and belief, this justification is accurate and complete. For those actions up to \$750,000, I approve contracting without competition for this requirement.

Jennifer Zwahlen

Name

Zwahlen, Jennifer

Digitally signed by Zwahlen, Jennifer
Date: 2025.03.10 10:57:05 -04'00'

Signature

03/10/2025

Date